

SENATE BILL 2093

By Crowe

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 11, Chapter 25 and Title 70, relative to the
Doe Mountain recreation authority.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 11-25-109(f), is amended by deleting the subsection and substituting:

(f)

(1) The authority is attached to the department of environment and conservation for administrative support purposes only. Such administrative support includes, but is not limited to, the hiring of staff persons. For all other purposes, the authority is independent from the department. The autonomy and powers of the authority are not affected by the attachment, and the department has no other supervisory control over the council.

(2) Staff persons employed by the authority are considered full-time employees of the department of environment and conservation and are subject to applicable personnel laws, rules, and policies, including, but not limited to, leave, compensation, classification, and travel requests.

(3) Employees serving as staff for the authority are state employees as defined under § 8-42-101, and are eligible for retirement benefits from the Tennessee consolidated retirement system, health insurance benefits, and other insurance benefits available to state employees. This subsection (f) is subject to the specific appropriation of funds by the general assembly.

SECTION 2. Tennessee Code Annotated, Section 11-25-113, is amended by deleting the section and substituting:

(a) The authority is subject to audit by the comptroller of the treasury in the same manner as the department of environment and conservation is audited.

(b)

(1) If approved by the comptroller of the treasury, the authority may employ a licensed independent public accountant to perform the audit.

(2) If the authority employs a licensed independent public accountant to perform the audit, the employment contract between the authority and the independent accountant must be made pursuant to the terms and on forms prescribed by the comptroller of the treasury.

(3) The authority shall pay the cost of any audit required by this section.

(c) The comptroller of the treasury shall ensure that audits are prepared in accordance with generally accepted governmental auditing standards and determine if the audits meet minimum audit standards prescribed by the comptroller of the treasury. No audit may be accepted as meeting the requirements of this section until approved by the comptroller of the treasury.

(d) A copy of the audit must be furnished to each member of the authority and to the comptroller of the treasury.

(e) The comptroller of the treasury, or the comptroller of the treasury's designated representative, shall have access to the authority's books, records, and accounts whenever such access is deemed necessary by the comptroller of the treasury or the comptroller of the treasury's designated representative.

(f) The authority shall prepare an annual report of its business affairs and transactions, a copy of which must be made available for public inspection, and filed by

January 31 of each year with the comptroller of the treasury, the governor, the speaker of the house of representatives, and the speaker of the senate.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.